tory scheme specifically concerned with, among other things, the processing of noncitizens at the U. S. border.

* * *

Congress passed the Refugee Act in 1980 because it did not want this country to repeat the mistakes of its past. Yet if the refugees on the M. S. *St. Louis* were to walk up to a port of entry on our southern border today, the majority's interpretation would allow immigration officers to refuse even to consider their asylum applications by physically blocking them from stepping foot onto U. S. soil. The majority's interpretation permits the Government to do that even if the refugees complied with all applicable laws and regulations, even if the port had ample capacity to inspect them, and even if turning them back would result in the very persecution from which they narrowly escaped. The consequences of today's decision are predictable. More people will die. More people will attempt to cross the border illegally, and some will make it while others will not. More people will be forced to walk along the U. S.-Mexico border in dangerous conditions, trying to find a port that will inspect them. More people will turn back and be subjected to violence because of something they cannot or should not have to change about themselves, such as their race, religion, nationality, or political opinion. Because this is neither what Congress said nor what its words permit, I respectfully dissent.

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JUSTICE JACKSON, dissenting.

Today, the Court issues an advisory opinion on the lawfulness of metering—a policy that has not been in place for almost five years and that the Government has no concrete plans to reinstate. In its rush to greenlight this retired practice, the majority elides serious justiciability concerns and decides legal issues entirely in the abstract. With potential mootness problems and without a factual record es-

tablishing how metering works in practice, the writ of certiorari in this case should never have been granted. I respectfully dissent from the Court's unwise decision to plow ahead nevertheless. I also join JUSTICE SOTOMAYOR's dissenting opinion because, in my view, her understanding of the Government's asylum-processing obligations under 8 U. S. C. §§ 1158(a)(1) and 1225(a)(1) is correct.

I

The majority barely mentions the most important factual development that occurred below: While respondents' suit was pending in the District Court, the Department of Homeland Security (DHS) rescinded its metering policy. See App. 135–139. The metering policy—which DHS first began implementing in 2016 and eventually formalized through written guidance in 2018—was the basis for respondents' claim for declaratory relief in the District Court. See *id.*, at 120–123. Respondents asserted that, by implementing the metering policy, DHS had unlawfully withheld access to the asylum and inspection process that §§ 1158(a)(1) and 1225(a)(1) provide to all noncitizens who "arriv[e] in the United States." It was to prevent future violations of these statutory provisions that respondents requested a judgment declaring the metering policy unlawful.

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Agreeing with respondents' interpretation of §§ 1158(a)(1) and 1225(a)(1), the District Court entered summary judgment in their favor on September 2, 2021. App. to Pet. for Cert. 406a–407a, 422a. But on November 1, 2021—before the District Court had ordered any relief—DHS rescinded its metering guidance. App. 135–139. Despite this significant turn of events, the District Court entered the requested declaration on August 23, 2022. App. to Pet. for Cert. 253a. The District Court agreed with both parties that declaratory relief would still "serve a useful purpose in clarifying" the Government's obligations under §§ 1158(a)(1) and 1225(a)(1). *Al Otro Lado, Inc.* v. *Mayorkas*, 619 F. Supp. 3d 1029, 1049

(SD Cal. 2022). The District Court did not address whether it remained appropriate to provide the Government with such clarification—*i. e.*, it did not address whether a live case or controversy remained.

II

Article III of the Constitution empowers federal courts to resolve "Cases" or "Controversies" and nothing more. The case-or-controversy requirement "limits our power as judges: It means that we can only resolve concrete legal disputes—those with real stakes for real people." *Diamond Alternative Energy, LLC* v. *EPA*, 606 U. S. 100, 133 (2025) (JACKSON, J., dissenting). In this way, Article III "tends to assure that the legal questions presented to the court will be resolved, not in the rarified atmosphere of a debating society, but in a concrete factual context conducive to a realistic appreciation of the consequences of judicial action." *Valley Forge Christian College* v. *Americans United for Separation of Church and State, Inc.*, 454 U. S. 464, 472 (1982).

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Article III's limits apply throughout the entirety of a dispute, not just at its outset. Thus, a case or controversy "must be extant at all stages of review, not merely at the time the complaint is filed." *Alvarez* v. *Smith*, 558 U. S. 87, 92 (2009) (internal quotation marks omitted). Federal courts lack jurisdiction over cases that become "moot" during the course of litigation because "the issues presented are no longer live or the parties lack a legally cognizable interest in the outcome." *Chafin* v. *Chafin*, 568 U. S. 165, 172 (2013) (internal quotation marks omitted). By insisting on the continued existence of a "live controversy," our mootness rules ensure that we do not issue "advisory opinions on abstract propositions of law." *Hall* v. *Beals*, 396 U. S. 45, 48 (1969) (*per curiam*).

The Court is surprisingly cavalier with respect to these requirements today. Now that the metering policy is no longer in place, it is doubtful that a pronouncement about its lawfulness can "affect the rights of [the] litigants in the case

before [us]." *North Carolina* v. *Rice*, 404 U. S. 244, 246 (1971) (*per curiam*). And in the absence of a live dispute "touching the legal relations of [the] parties," *ibid.* (internal quotation marks omitted), we are left with only a hypothetical one requiring rank speculation over how §§ 1158(a)(1) and 1225(a)(1) might apply to a future policy. But "a dispute solely about the meaning of a law, abstracted from any concrete actual or threatened harm, falls outside the scope of the constitutional words 'Cases' and 'Controversies.'" *Alvarez*, 558 U. S., at 93.

To avoid this jurisdictional problem, the majority points to the voluntary-cessation exception to mootness. It maintains that the Court has jurisdiction because "respondents have not carried their burden to establish that it is 'absolutely clear' that the Government would not 'reimpose' metering if it could." *Ante*, at 268, n. 7 (quoting *West Virginia* v. *EPA*, 597 U. S. 697, 720 (2022)). But we have "given mixed signals concerning how likely recurrence needs to be for this exception to mootness doctrine to apply." W. Baude, J. Goldsmith, J. Manning, J. Pfander, & A. Tyler, Hart and Wechsler's The Federal Courts and the Federal System 250–251 (8th ed. 2025). And, here, the Government has not expressed an intent to reinstate metering; it states only that "it seeks to retain *the option* of reviving the practice." Brief for Petitioners 7 (emphasis added).

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What is more, we generally apply the voluntary-cessation exception in cases where the plaintiff argues that application of the mootness doctrine will "'leave [t]he defendant . . . free to return to his old ways.'" *Friends of the Earth, Inc.* v. *Laidlaw Environmental Services (TOC), Inc.*, 528 U. S. 167, 189 (2000) (quoting *City of Mesquite* v. *Aladdin's Castle, Inc.*, 455 U. S. 283, 289, n. 10 (1982); alterations in original). The exception thus allows a plaintiff to obtain a court's review where there is reason to believe that the defendant's allegedly harmful conduct will resume if the case is declared moot. See *United States* v. *W. T. Grant Co.*, 345 U. S. 629, 632, n. 5 (1953). But, in the case before us now, it is only

the defendant (*i.e.*, the Government) that seeks this Court's review of its allegedly harmful conduct. See Brief for Petitioners 3. And the Government does not need an opinion from this Court as to whether its rescinded guidance violated §§ 1158(a)(1) and 1225(a)(1) to resume metering in the future; it can simply issue new guidance. So on these facts the voluntary-cessation exception is an odd fit.*

Odder still is the fact that, before the Ninth Circuit, the Government suggested that its rescission of the guidance created jurisdictional problems. See Supp. Brief for Appellants in Response to Court Order in No. 22–55988 etc., p. 42, n. 5. Before us, it asserted the opposite. See Tr. of Oral Arg. 26. This shift in positions calls for consideration of whether the Government's arguments are sincere and reasonable, rather than a ploy to obtain this Court's review of a now-defunct policy.

Ultimately, the Government's rescission of the metering policy raises jurisdictional questions that this Court needs to resolve before reaching the merits. See *Steel Co.* v. *Citizens for Better Environment*, 523 U. S. 83, 94–95 (1998). But the parties did not address mootness in their merits-stage briefing, and the majority fails to give this crucial matter the attention it warrants. To me, all this suggests that the better course was to refrain from exercising certiorari jurisdiction in this case.

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III

Even assuming Article III presents no obstacle to our review, there was no need to decide the issues presented in this case today. As is often true, "[t]he Court had plenty

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*If there was concern that denying certiorari would have allowed the Ninth Circuit's decision to remain on the books and continue to bind the Government, see *ante*, at 268, n. 7, this Court could have vacated the judgment below. There are grounds for doing so: The District Court likely abused its equitable discretion by declaring unlawful a policy that was no longer in place, and the Ninth Circuit erred by not considering this issue. Taking this course of action would not have required this Court to opine on the merits of the legal issues.

of other options." *Diamond Alternative Energy*, 606 U. S., at 134 (JACKSON, J., dissenting). Our docket is "discretionary," and "no one is now subject to" metering, so "there was no reason to reach out to decide this case." *West Virginia*, 597 U. S., at 755 (KAGAN, J., dissenting). We should have waited for the Government to reinstate a metering policy before reaching the merits. Had we done so, we would have a record establishing how metering works on the ground and how it interacts with the Government's obligations under §§ 1158(a)(1) and 1225(a)(1).

Our lack of any factual basis for understanding these critical points was apparent at oral argument. There were multiple questions, for instance, about the rate at which immigration officials can process noncitizens at ports of entry. That rate might indicate how far into Mexican territory a noncitizen subject to metering must wait in line before he can present an asylum claim to an immigration officer. See Tr. of Oral Arg. 70–72. The answer, in turn, might affect our conclusions about when the noncitizen is deemed to have "arrive[d] in" the United States under §§ 1158(a)(1) and 1225(a)(1). Without such an answer, the Court interprets those provisions in a vacuum—an unreliable endeavor at best.

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The absence of a current metering policy has plainly infected the Court's ultimate analysis, too. The majority grounds its reasoning in metaphors about a linebacker and a houseguest and a piece of mail. *Ante*, at 268–270. (It must do this, of course, because it has no actual facts to grapple with.) No one knows how, if at all, the reasoning drawn from these metaphors will map on to the realities of a future metering policy. All we can do now is guess.

But the Court is not a law student puzzling through a difficult cold call. When we issue opinions, we create legal rules with real-world impact. It is for this very reason that our precedents require "a concrete factual context conducive to a realistic appreciation of the consequences of judicial ac-

tion." *Valley Forge*, 454 U. S., at 472. Because we so obviously lack that context here, we should not have decided this case.

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